21STCV39140 21STCV39140

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Case Number: 21STCV39140 Hearing Date: July 14, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.
Kalra, Department 511

HEARING DATE: July
14, 2026

CASE NAME: The
Estate of Etsuko Toguri v. Anna Marie Pierotti, et al.

CASE NO.: 21STCV39140

MOTION
TO TAX COSTS

MOVING PARTY: Plaintiffs-Intervenors
Anita Kidd and Lawrence H. Biondi, S.K., as co-trustees of the Leroy E. Biondi
Revocable Trust

RESPONDING PARTY(S): Defendants Peter Pierotti and
Aptco, LLC; Defendant Anna Marie Pierotti

REQUESTED RELIEF:

1. An
order reducing Defendants Peter Pierotti and Aptco, LLC’s request for costs to
$11,113.07;

2. An
order reducing Defendant Anna Marie Pierotti's request for costs to $15,933.06.

TENTATIVE RULING:

1. Motion
to tax costs of Defendant Defendants Peter Pierotti and Aptco, LLC are GRANTED in the amount of $1,838.75 and are otherwise DENIED.

2. Motion
to tax costs of Defendant Anna Marie Pierotti is DENIED in full.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On October 22, 2021, Plaintiff Estate of Etsuko Toguri, by and through Trustee Kathleen "Miki" Toguri ("Plaintiff") filed a complaint against Anna Marie Pierotti, Peter Pierotti, and Aptco, LLC. ("Defendants.") The complaint alleged six causes of action: (1) Breach of Fiduciary Duty, (2) Aiding and Abetting Breach of Fiduciary Duty, (3) Unjust Enrichment, (4) Fraudulent Omission, (5) Fraudulent Misrepresentation, and (6) Conversion.¿¿

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The complaint alleges that Plaintiff Toguri along with Osvaldo Pierotti and Roy Biondi entered a Partnership Agreement dealing with various real estate ventures, including the acquisition of a property in Rancho Cucamonga, California. The property was eventually sold for $45 million, and while the property was owned by the partnership, Plaintiff Etsuko, as a one-third member, did not receive any of the proceeds. Plaintiff alleges that Osvaldo along with his wife and son, conspired to funnel the proceeds to a shell corporation owned by Osvaldo's son.¿¿¿

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On November 23, 2021, Defendants Anna Marie Pierotti, Peter Pierotti, Aptco, LLC filed an Answer.¿¿¿

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On November 29, 2021, the matter was Removed to the Federal District Court for the Central District of California.¿

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On March 20, 2023, the matter was Remanded from the Federal District Court.¿

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On May 4, 2023, Plaintiff filed a First Amended Complaint, which added causes of action Conspiracy to Breach Fiduciary Duty, Conspiracy to Commit Fraud, and Aiding and Abetting Fraud, as well as Defendants Richard Arshonsky and Levinson, Arshonsky & Kurtz, LLP.¿¿¿

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On May 4, 2023, Plaintiffs in Intervention Father Lawrence H. Biondi, S.J. and Anita M. Kidd, as Trustees of the Leroy E. Biodi Revocable Trust, (Trustees) filed Plaintiff-Intervenors Complaint with five causes of action for: (1) Unjust Enrichment, (2) Accounting, (3) Declaratory Judgment, (4) Breach of Fiduciary Duty, and (5) Fraud by Omission.¿¿

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On July 3, 2023, Defendants in Intervention filed a Demurrer to the Third-Party Complaint, which the court SUSTAINED with 20 days leave to amend on July 27, 2023.¿

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On August 16, 2023, Plaintiffs in Intervention filed a First Amended Third-Party Complaint (Amended TPC) with ten causes of action for: (1) Unjust Enrichment, (2) Fraud, (3) Conspiracy to Defraud, (4) Aiding & Abetting Fraud, (5) Fraudulent Omission, (6) Breach of Fiduciary Duty, (7) Conspiracy to Breach Fiduciary Duties, (8) Aiding & Abetting Breach of Fiduciary Duties, (9) Conversion, and (10) Declaratory Judgment.¿

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On March 5, 2024, Plaintiffs in Intervention filed a Third Amended Complaint.¿

On June 27, 2025, Defendant Anna Marie Pierotti (Anna Marie) filed a motion for summary judgment, summary adjudication.1 On July 1, 2025, Defendants Peter Pierotti (Peter) and Aptco, LLC filed their motion for summary judgment, summary adjudication. On October 10, 2025, Trustees filed oppositions. On October 20, 2025, Anna Marie, Peter, and Aptco filed replies.

On September 9, 2025, Plaintiff filed a motion for summary judgment as to Trustees' TAC pertaining to them.

On October 31, 2025, the matter came on for hearing. After oral argument, the court ordered the further briefing and continued the hearing to January 14, 2026.

On December 17, 2025, the court took the motions for summary judgment under submission.

On January 14, 2026, the court GRANTED the motions for summary judgment.

On January 26, 2026, the Biondi Trustees filed a motion for reconsideration which the court DENIED.

On February 27, 2026, Defendants Anna Marie and Peter & Aptco each filed the instant motion for summary judgment, or alternatively summary adjudication, on Plaintiff's FAC (the MSJs).

On March 24, 2026, Peter & Aptco filed a judgment on their summary judgment motion for the Biondi Trustees.

On April 8, 2026, Anna Marie, Peter & Aptco, and Plaintiff each filed memorandum of costs.

On April 27, 2026, the Trustees filed the instant motion to tax costs. On June 30, 2026, Peter & Aptco and Anna Marie each filed

oppositions. On July July 7, 2026,
Trustees filed an Reply.

LEGAL STANDARD:

" 'The right to recover any of the costs of a civil action "is determined entirely by statute." '¿[Citation.]¿" '[I]n the absence of an authorizing statute, no costs can be recovered by either¿party." '¿[Citation.] 'Section 1032 governs the award of costs of trial court litigation.' [Citation.]" (Charton v. Harkey¿(2016) 247 Cal.App.4th 730, 737.)¿¿¿¿¿

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"Except as otherwise¿expressly¿provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032, subd. (b).) (Emphasis added.) Code of Civil Procedure section 1032, subdivision (a) defines a "prevailing party" as "[1] the party with a net monetary recovery, [2] a defendant in whose favor dismissal is entered, [3] a defendant where neither plaintiff nor defendant obtains any relief, and [4] a defendant as against those plaintiffs who do not recover any relief against that defendant."¿¿¿¿¿

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Costs are allowable if incurred,¿whether or not¿paid. (Code Civ. Proc., § 1033.5, subd. (c)(1).) Costs must also be "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation" and must be reasonable in amount. (Code Civ. Proc., § 1033.5, subd. (c)(2)-(3).)¿¿¿¿¿

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A prevailing party claiming costs must file and serve a memorandum of costs either (1) within 15 days after the date of service of a notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5, (2) 15 days after the service of written notice of entry of judgment or dismissal, or (3) within 180 days after entry of judgment, whichever is first. (Cal. Rules of Court, rule 3.1700, subd. (a).)¿¿¿¿¿

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Any motion to strike or tax costs must be served and filed
15 days after service of the memorandum, plus an¿additional¿5 days if served by mail or 2 days if served electronically. (Cal. Rules of Court, rule 3.1700, subd. (b)(1).) “Unless objection is made to the entire cost memorandum, the motion to strike or tax costs must refer to each item objected to by the same number and appear in the same order as the corresponding cost item claimed on the memorandum of costs and must state why the item is objectionable.” (Cal. Rules of Court, rule 3.1700, subd. (b)(2).)¿

ANALYSIS:

Prevailing Party

As provided by statute, a prevailing
party “includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant.” (Chaparral Greens v. City of Chula Vista (1996) 50 Cal.App.4th 1132, 1152 [citing CCP § 1032(a)).)

Here, the parties do not dispute that the Defendants are the prevailing party for purposes of this motion.[1]
However, Trustees contend any final cost award should be directed to the Roy Biondi Trust and not to Trustees individually. Peter & Aptco argue that trust assets should not be used to finance litigation that never concerned the trust and such an award is essentially forcing Peter to pay himself. The court finds this is outside the scope of this motion and defers ruling on the issue.

Accordingly, Defendants Peter Pierotti, Aptco, LLC, Anna Marie Pierotti are prevailing parties.

ii.
Reasonable
Costs

Peter Pierotti & Aptco:

Trustees seek to tax $33,012.57 of Peter Pierotti & Aptco's costs with a final award of $11,113.07.

a. Filing and Motion Fees

Trustees contend the fee to admit Mr. Swibel pro hac vice should be taxed in full because it was not necessary to the MSJ.

Peter & Aptco argue that the fees were reasonable and necessary to conduct the litigation because Mr. Swibel is an integral part of their litigation team.

CCP 1033.5(a)(1) allows for recovery of "[f]iling, motion, and jury fees."

Here, this cost is reasonable. First, it is a filing/motion fee as it was an application to admit Mr. Swibel pro hac vice. The court is not persuaded by Trustees' arguments that it is not recoverable.

Accordingly, the court DENIES Trustees' motion to tax this cost.

b. Deposition Costs

Trustees contend the deposition fees related to several depositions: (1) the deposition of Miki Toguri should be taxed because it was not necessary for the MSJ and is inflated compared to those sought by Anna Marie; (2) the deposition of Lawrence Biondi includes extra travel time and seeks amounts higher than by Anna Marie and Plaintiff for the same deposition; (3) the deposition of Anita Kidd includes higher costs than those sought by Anna Marie and Plaintiff; (4) the deposition costs for Peter Pierotti's deposition includes travel for dates the deposition did not occur, extra travel days for when the deposition did occur, and unexplained inflated fees compared to Anna Marie and Trustees' orders.

Peter & Aptco argue: (1) Peter incurred to cost of reserving the location for Miki Toguri's deposition in Toronto, Canada, plus the cost to transcript/record it, recoverable travel time, and was necessary to the litigation; (2) – (3) Peter incurred the cost of taking, video recording, transcribing, and travel for Father Biondi's and Anita Kidd's depositions in St. Louis, Missouri with extra time allocated for more than one day as discussed by the parties, and the depositions were reasonably necessary to the litigation; (4) Peter incurred the cost of video recording, transcribing and travel for Peter's deposition including time for preparation. For all, Peter & Aptco argue that Trustees impermissibly apply a hindsight standard of reasonableness instead of reasonableness at the time incurred standard.

CCP § 1033.5 permits recovering the "[t]aking, video recording, and transcribing [of] necessary depositions" as well as "[t]ravel expenses to attend depositions." (CCP § 1033.5(a)(3)(A) and (C); Garcia v. Tempur-Pedic North America, LLC (2024) 98 Cal.App.5th 819, 823.)

Here, the costs sought are reasonable. First, the court rejects Trustees' contention that the depositions must have been used in the MSJ to be necessary. "The recovery of deposition costs does not depend on whether the deponent ultimately testifies at trial." (Chaaban v. Wet Seal, Inc. (2012) 203 Cal.App.4th 49, 57.) The same reasoning should apply for summary judgment motions. What is more, it should go without saying that taking party depositions are reasonably necessary for the litigation. Second, the court rejects the argument that the travel costs are unreasonable because they were reasonable at the time they were incurred. (Garcia, supra, 98 Cal.App.5th at p. 824-825 ["Hindsight is no guide here."]) Peter & Aptco present sufficient evidence supporting these costs. (Declaration of Aaron B. Bloom ¶¶ 2, 3, 4.)[2]
The court agrees that the charge for "Professional Attendance" is not recoverable because it appears to be an attorney fee or litigation support expense not expressly authorized by Code of Civil Procedure section 1033.5. However, the Court disagrees that the remaining challenged items are categorically unrecoverable. Taken together, it appears these costs were reasonably necessary at the time they were incurred.[3]

Accordingly, only the "Professional Attendance" charge is taxed for $565 and $1,273.75 for a total of $1,838.75.

In all other respects, the court DENIES Trustees' motion to tax these costs.

c. Court
Reporter Fees

Trustees contend that the private court reporter costs to transcribe court hearings are expressly excluded by statute.

Peter & Aptco argue court reporter fees are entirely different from transcript fees and so these are explicitly recoverable per statute.

CCP § 1033.5(a)(11) allows for "[c]ourt reporter fees as established by statute." That statute is Gov. Code § 68086. (Gov. Code § 68086(c).) If there is no official court reporter provided by the court, a party is free to obtain a private official court reporter. (Gov. Code § 68086(d)(2).)

Transcripts of court proceedings not ordered by the court are not recoverable. (CCP § 1033.5(b)(5).)

Here, the costs sought are reasonable court reporter fees. Notably, the reporter was appointed as an official court reporter pro tempore consistent with the Government Code. (July 27, 2023 Minute Order, January 26, 2024 Minute Order, October 31, 2025 Minute Order, and January 14, 2026 Minute Order.) Since these hearings were more than one hour each, Peter & Aptco may recover "a fee equal to the actual cost of providing that service . . . per one-half day of services . . . ." (Gov. Code § 68086(a)(2).) These costs are therefore recoverable.

Accordingly, the court DENIES the motion to tax these costs.

Anna Marie Pierotti:

Trustees seek to tax $4,518.28 of costs from Anna Marie Pierotti for a final award of $15,933.06.

a. Deposition
Costs

Trustees seek to strike costs pertaining to the deposition of Miki Toguri as unnecessary for the MSJ.

Anna Marie argues the costs are allowable per statute and were necessary to the litigation and Trustees' conclusory allegations otherwise are not contrary evidence.

The court incorporates its reasoning for Peter & Aptco here and notes that Anna Marie has provided sufficient evidence supporting the costs. (Declaration of Alicia N. Vaz ¶¶ 2, 3.)[4]

Accordingly, the court DENIES Trustees' motion to tax these deposition costs.

b. Court Reporter Fees

Trustees contend that the private court reporter costs to transcribe court hearings are expressly excluded by statute.

Anna Marie argues the reporter fees are recoverable since the court does not provide an official court reporter and seeks the reporter's fee, not the cost of transcription.

The court incorporates its reasoning for Peter & Aptco here. (October 31, 2025 Minute Order.)

Accordingly, the court DENIES Trustees' motion to tax these costs.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Motion to tax costs of Defendant Defendants Peter Pierotti and Aptco, LLC are GRANTED in the amount of $1,838.75 and are otherwise DENIED.

2. Motion to tax costs of Defendant Anna Marie Pierotti is DENIED in full.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: July 14, 2026 ___________________________________ Upinder S. Kalra

Judge
of the Superior Court

[1]
Since the Trustees do not challenge Plaintiff’s cost memorandum, the court need not articulate whether they, too, are prevailing parties for purposes of this motion.

[2]
The court rejects Plaintiff’s assertion that the fourth night in St. Louis is unreasonable. Plaintiff's characterization of the record is incomplete. Although counsel's expense report noted that he "stayed an extra night to see [his] nephew," the record reflects additional circumstances. As explained in counsel Bloom's declaration, after the deposition concluded earlier than anticipated, counsel investigated changing his return flight but determined that doing so would have cost several hundred dollars more. Rather than incur those additional airfare costs, counsel elected to keep his original flight reservation and remain in St. Louis for the additional night. Moreover, counsel did not bill the client for that fourth hotel night. As reflected in Exhibit L to the Opposition and Attachment 4E to the Memorandum of Costs, only three hotel nights were claimed. Accordingly, the costs sought are reasonable, and Plaintiff's objection is without merit.

[3]
The conference room rental is an allowable deposition expense under Code of Civil Procedure section 1033.5, subdivision (a)(3)(A), as it was incurred in connection with taking the deposition. Likewise, the costs of printing deposition exhibits are recoverable under section 1033.5, subdivision (a)(13), because the exhibits were reasonably helpful to aid the trier of fact.

[4]
Plaintiff has not demonstrated that the travel expenses associated with the cancelled and rescheduled depositions were unreasonable or unnecessary when incurred. The record reflects that the travel arrangements were made in anticipation of duly noticed depositions, and the subsequent cancellation does not, by itself, render those costs unrecoverable. Accordingly, the Court

declines to tax these costs.